CONSEIL DE L'EUROPE

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# COUR EUROPÉENNE DES DROITS DE L'HOMME
# EUROPEAN COURT OF HUMAN RIGHTS

## SECOND SECTION

## DECISION

Application no. 33297/04
by Aydın NOĞAY
against Turkey

The European Court of Human Rights (Second Section), sitting on 9 Decemver 2008 as a Chamber composed of:

Françoise Tulkens, *President*,
Ireneu Cabral Barreto,
Vladimiro Zagrebelsky,
Danutė Jočienė,
András Sajó,
Nona Tsotsoria,
Işıl Karakaş, *judges*,

and Sally Dollé, *Section Registrar*,

Having regard to the above application lodged on 9 August 2004,

Having regard to the observations submitted by the respondent Government and the observations in reply submitted by the applicant,

Having deliberated, decides as follows:

## THE FACTS

The applicant, Mr Aydın Noğay, is a Turkish national who was born in 1956 and lives in İzmir. He was represented before the Court by Ms N. Başel, a lawyer practicing in Ankara. The Turkish Government ("the Government") were represented by their Agent.

The facts of the case, as submitted by the parties, may be summarised as follows.

On 10 December 2003 the applicant, an engineer at the General Directorate of Highways, did not go to work but participated to a press

statement organised by the İzmir branch of the Confederation of Public Employees' Trade Unions.

On 13 January 2004 the applicant received a reprimand from the Deputy Regional Director at the Ministry, in accordance with Article 125 B (l) of the Law on Civil Servants (Law no. 657). The applicant's objection to this decision before the Regional Director was rejected on 17 February 2004.

On 20 September 2004 the applicant retired from public service.

The Government submitted that the disciplinary sanction against the applicant had been erased pursuant to Law no. 5525 of 22 June 2006, which grants civil servants an amnesty in relation to some disciplinary offences.

## THE LAW

The applicant complained under Articles 6 and 11 of the Convention that the disciplinary sanction imposed on him for having participated in the meeting held on 10 December 2003 had infringed his right to freedom of association and that he had no possibility under domestic law to challenge this sanction before a court.

In the case of *Düzen and Others v. Turkey* ((dec.), no. 34879/04, 13 November 2008), which concerned similar facts and complaints, the Court considered that the application of the amnesty to the applicants' disciplinary sanctions had resolved the matter giving rise to their complaints under Articles 6, 11 and 13 of the Convention, particularly since the disciplinary sanction had been erased from their personal files and that there was no indication in the case file that they had been adversely affected by the disciplinary sanction in question prior to that period.

The Court finds no particular circumstances in the instant case which would require it to depart from its considerations above. In the instant case, the applicant's disciplinary sanction has been subsequently the subject of an amnesty, pursuant to Law no. 5525. Moreover, in the meantime, the applicant had already retired from public service. No arguments have been forthcoming from the applicant demonstrating that he had been adversely affected by the disciplinary sanction in question prior to that period. Consequently, the Court concludes that the matter giving rise to this complaint can now be considered to be “resolved” within the meaning of Article 37 § 1 (b) of the Convention. Furthermore, in accordance with Article 37 § 1 *in fine*, the Court finds no special circumstances regarding respect for human rights as defined in the Convention and its Protocols which require the continued examination of the case.

In view of the above, it is appropriate to discontinue the application of Article 29 § 3 and to strike the case out of the list.

For these reasons, the Court unanimously

*Decides* to strike the application out of its list of cases.

Sally Dollé
Registrar

Françoise Tulkens
President